

Summary of SC101805, *Richard von Glahn v. Denny Hoskins, in His Official Capacity*

Appeal from the Cole County circuit court, Judge Daniel R. Green

Argued and submitted September 2, 2026; opinion issued September 3, 2026

Attorneys: Von Glahn was represented by Charles W. Hatfield, Alexander C. Barrett, Alixandra C. Cossette, and Greta M. Bax of Stinson LLP in Jefferson City, (573) 636-6263. The secretary of state was represented by Louis J. Capozzi III and J. Michael Patton of the attorney general's office in Jefferson City, (573) 751-3321. The Republican National Committee, National Republican Congressional Committee, and Missouri Republican Committee were represented by Marc H. Ellinger, Stephanie S. Bell, and Cole D. Bradbury of Ellinger Bell LLC in Jefferson City, (573) 750-4100; and John M. Gore of Jones Day in Washington, D.C., (202) 879-3930.

Several groups filed briefs as friends of the Court. Two county election authorities were represented by Boone County Clerk Brianna Lennon of Columbia, (573) 886-4296. The Campaign Legal Center, ACLU, and ACLU of Missouri were represented by Gillian R. Wilcox and Jason A. Orr of the ACLU of Missouri Foundation in Kansas City, (816) 470-9933, and Kristin M. Mulvey and Jonathan D. Schmid of the ACLU of Missouri Foundation in St. Louis, (314) 652-3114.

This summary is not part of the Court's opinion. It is provided by communications counsel for the convenience of the reader to help understand issues in the opinion. Any quotes or citations should be to the Court's opinion, not this summary.

Overview: A proponent of a referendum petition seeking a referendum on House Bill 1 (the legislature's 2025 act to repeal Missouri's 2022 congressional districts and establish new congressional districts) appeals the circuit court's judgment upholding the secretary of state's certification of the petition as insufficient. In a unanimous decision written by Judge Ginger K. Gooch, the Supreme Court of Missouri reverses the judgment. The referendum petition was legal, sufficient, and timely. Article III, section 49 permits a referendum on "any act of the general assembly," which includes HB 1, and no exception applies.

The secretary of state spends much of his briefing discussing potential confusion, expense, and practical difficulties that may result from not using the HB 1 map for the November 2026 general election, but the secretary's delay caused any potential confusion, expense, and practical difficulties. The secretary's delay provides no lawful basis to ignore the plain text of the Missouri Constitution as to the legal effect of a sufficient referendum petition. HB 1 is not the law and never has been the law. HB 1 will not take effect unless and until approved by the voters at the November 2026 general election. The 2022 congressional districts are in full force and effect for the November 2026 general election. The secretary of state is ordered to issue a certificate of sufficiency for the referendum petition, to place the referendum on the November 2026 general election ballot, and to take all necessary steps to place the referendum on the November ballot before September 8, 2026. Meanwhile, no one may implement, use, or mandate use of HB 1's congressional redistricting map for the November 2026 general election or at any later time unless and until voters approve HB 1 at the November 2026 election and HB 1 takes effect.

Facts: There is no dispute organizers timely filed referendum petition 2026-R0004, seeking a referendum on HB 1, on September 29, 2025, with the secretary of state's office. The secretary of state subsequently certified its official ballot title and approved the referendum petition for circulation. On December 9, 2025, the organizers submitted boxes of signed petitions to the secretary of state's office. There is no dispute the referendum petition has the constitutionally required number of signatures. The December 9 filing triggered the secretary of state's statutory obligation to examine the referendum petition for compliance with the state constitution and chapter 116, RSMo, and to issue a certificate of sufficiency or insufficiency as to the petition no later than 5 p.m. August 4, 2026. At about 4 p.m. August 4, the secretary of state issued a certificate of insufficiency finding "the Missouri Constitution does not authorize a referendum on congressional redistricting plans passed by the General Assembly." The secretary of state directed the referendum petition should not be placed on the November 2026 general election ballot. Organizer Richard von Glahn sued under section 116.200, seeking reversal of the secretary of state's certification decision and an injunction restraining the secretary of state from using, implementing, or mandating use of HB 1's congressional redistricting. The circuit court upheld the secretary of state's insufficiency certification; von Glahn appeals.

Reversed.

Court en banc holds: (1) Section 116.120 requires the secretary of state to examine the petition for compliance with the state constitution and chapter 116; once the secretary of state makes that determination, section 116.150 requires him to issue a certificate of sufficiency or insufficiency; and, for a certificate of insufficiency, to state the reason for the insufficiency. Section 116.150 does not authorize the secretary of state to delegate his statutory duty by attaching and incorporating by reference an attorney general "opinion" or other document prepared and signed by another person or entity. This Court's review, therefore, is limited to the certificate's single stated reason for insufficiency – that the state constitution does not authorize a referendum on a congressional redistricting act the legislature passes. Any other arguments the secretary of state attempts to raise – including claimed federal law violations and whether HB 1's congressional districts should or must remain in place through the 2026 election cycle – are waived, abandoned, and beyond the scope of his statutory review authority in section 116.120.

(2) The Missouri Constitution authorizes a referendum on congressional redistricting passed by the legislature. The referendum and initiative power is an essential part of the state's lawmaking process under the state constitution. The broad default language in article III, section 49 – subjecting "any act of the general assembly" to referendum – applies. Congressional redistricting legislation does not fall within article III, section 52(a)'s "immediate preservation" or "maintenance of state institution" exceptions or the explicit exclusions in article III, sections 3(i) and 7(h) for "redistricting plans" proposed by independent bipartisan citizens commissions drawing new *state legislative* districts for *state* representatives and *state* senators. Furthermore, the United States Supreme Court has held on multiple occasions (and as recently as three years ago) the federal constitution permits a state to authorize a referendum as to legislation drawing new congressional districts. Additionally, a later-enacted statute has *no* bearing on the constitution's plain language; therefore, the state constitution permits a referendum as to "any act of the General Assembly" regardless of any statutory deadlines the legislature sets decades later.

(3) Because it is subject to a referendum, HB 1 did not and will not go into effect unless and until approved by the voters. Under the state constitution, the congressional map the legislature established in 2022 is the only map in effect; it remains in full force and effect for the November 2026 general election. Any arguments about the confusion, expense, and practical difficulties that may result from not using HB 1's congressional redistricting for the November election are irrelevant to the certificate's sole stated reason for insufficiency (which was incorrect), were caused by the secretary of state's delay, and fundamentally misunderstand HB 1's status pending the referendum vote.